

15. 9:00 AM CASE NUMBER: N23-0655
CASE NAME: PETITION OF: LORNE CLUTE
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: ROUND HILL COUNTRY CLUB, A CALIFORNIA CORPORATION
TENTATIVE RULING:

Respondent Round Hill Country Club (“Round Hill”) filed a Petition to Confirm Contractual Arbitration Award on October 15, 2025 (the “Petition to Confirm”). The Petition to Confirm was set for hearing on March 9, 2026. No response has been filed.

Background

This matter was initiated by petitioner Lorne Jason Clute’s (“Mr. Clute”) Petition to Appoint Neutral Arbitrator filed March 22, 2023. The arbitration was ordered by the Court’s order entered March 22, 2023 and the subsequent orders regarding the selection of the arbitrator. Ultimately, the Court appointed the Hon. Candace D. Cooper (Ret.) as the arbitrator (the “Arbitrator”).

The arbitration was conducted before the duly appointed Arbitrator. Petition to Confirm, ¶17 and Attachments thereto.

An arbitration award was made by the Arbitrator on October 6, 2025, a copy of which is attached to the Petition to Confirm. After a series of rulings on the sufficiency of the allegations, the Arbitrator entered a judgment in favor of Round Hill and against Mr. Clute. See Order re Motion for Judgment on the Amended Pleadings entered October 6, 2025 (the “Arbitration Award”), Petition to Confirm, Attachments.

Analysis

Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate that award. Code Civ. Proc. § 1285; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 3.62. Such petition is a summary proceeding in the manner of and upon the notice provided by law for the making and hearing of motions, except that not less than ten (10) days’ notice of the date set for the hearing on the petition shall be given. Code Civ. Proc. § 1290.2.

If a petition is duly served and filed, the court shall confirm the award as made unless it corrects the award and confirms it as corrected, vacates the award, or dismisses the proceedings. Code Civ. Proc. § 1286. If an award is confirmed, judgment shall be entered in conformity therewith. Code Civ. Proc. § 1287.4. The judgment has the same force and effect as a judgment in a civil action and it may be enforced like any other judgment. *Id.*

Once a party to an arbitration award has filed a petition to confirm, correct or vacate an award, a response must be filed and served within ten (10) days after service of the petition, unless extended. Code Civ. Proc. § 1290.6; see CJER Civ. Pro.—Before Trial, § 3.63.

A response requesting that an award be vacated or that an award be corrected shall be served and filed not later than 100 days after the date of service of a signed copy of the award upon: (a) The respondent if he was a party to the arbitration; or (b) The respondent’s representative if the respondent was not a party to the arbitration. Code Civ. Proc. § 1288.2.

Before confirming an award, a trial court has a duty, in order to follow the dictates of Code of Civil

Procedure section 1283.4, to ensure that the arbitrator's "award" is an "award" within the meaning of that statute. *Cinel v. Christopher* (2012) 203 Cal.App.4th 759, 767; see CJER Civ. Pro.—Before Trial, § 3.94; see also Code Civ. Proc. § 1283.4 ("The award shall be in writing and signed by the arbitrators concurring therein. It shall include a determination of all the questions submitted to the arbitrators the decision of which is necessary in order to determine the controversy.").

A Proof of Service of the Petition to Confirm on Mr. Clute was filed October 15, 2025 and notice of the hearing date on the Petition to Confirm was also given. See Notice of Hearing filed October 24, 2025.

Mr. Clute has not filed a response or otherwise sought to correct or vacate the Arbitration Award.

The Court finds that the Arbitration Award was duly made in writing by the Arbitrator and constitutes a determination of all the questions submitted to the Arbitrator, the decision of which was necessary in order to determine the controversy. Accordingly, the Court confirms the Arbitration Award made.

Disposition

The Court finds and orders as follows:

1. The Petition to Confirm is GRANTED and the Arbitration Award is CONFIRMED.
2. Round Hill to submit proposed forms of order and judgment.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C22-02774

CASE NAME: JANE DOE A.M.M. VS. WEST CONTRA COSTA UNIFIED SCHOOL DISTRICT

***HEARING ON MOTION FOR DISCOVERY ORDER TO COMPEL CTC'S COMPLIANCE WITH SUBPOENA FOR PRODUCTION OF RECORDS**

FILED BY: DOE A.M.M., JANE

TENTATIVE RULING:

Plaintiff Jane Doe A.M.M. ("Plaintiff") filed a Motion for Order to Compel CTC's Compliance with Subpoena for Production of Records ("Motion to Compel Compliance with Subpoena") on December 4, 2025. The matter was set for hearing on June 29, 2026. By its Order entered January 9, 2026, the Court advanced the hearing date to March 9, 2026. The motion is opposed.

Background

This case stems from allegations that defendant West Contra Costa Unified School District (the "District") is liable, under various theories, for the childhood sexual assault on Plaintiff perpetrated by "a counselor, employee, and agent" of the District (the "Perpetrator").

After an initial effort to secure documents through an informal request and meet and confer process, Plaintiff served third party California Commission on Teacher Credentialing ("CTC") with a subpoena seeking documents relating to the Perpetrator. See Declaration of Amanda J.G. Walbrun ("Walbrun Decl."), ¶¶13-17 and **Exhibit 6** thereto (the "Subpoena").

CTC responded "by producing forty-three (43) pages of significantly redacted documents. *Id.* at ¶¶20-22